

The M.P. Cattle Diseases Rules, 1961

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State of Madhya Pradesh - Act

The M.P. Cattle Diseases Rules, 1961

MADHYA PRADESH

India

The M.P. Cattle Diseases Rules, 1961

Rule THE-M-P-CATTLE-DISEASES-RULES-1961 of 1961

Published on 18 November 1961

Commenced on 18 November 1961

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The M.P. Cattle Diseases Rules, 1961

Published vide Notification No. 7940-4467-Vety, dated 18th November, 1961, Madhya Pradesh Rajpatra, Part 4 (Ga) dated 8-12-61, p. 1055

In exercise of the powers conferred by sub-section (7) of Sections 9-A and 13 of the Madhya Pradesh Cattle Diseases Act, 1934 (XVI of 1934), the State Government hereby makes the following rules, the same having been previously published as required by sub-section (1) of Section 13 of the said Act, namely :

1.

Short title.

- These rules may be called The Madhya Pradesh Cattle Diseases Rules, 1961.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(i)

"Act" means the Madhya Pradesh Cattle Diseases Act, 1934 (XVI of 1934);

(ii)

"Cattle" means all domesticated animals including bulls, cows, bullocks, heifers, bull or cow-calves over six months, he-buffaloes, she-buffaloes, buffalo-calves over six months, usually imported into the State :

Provided that the following class of cattle shall not be deemed to be cattle for the purpose of the Act,-

(a)

Cattle purchased by agriculturists living in villages situated on the border of the State from adjoining villages beyond the border of the State;

(b)

Cattle yoked to carts which convey passengers or goods up and down such border villages;

(c)

Cattle belonging to agriculturists of such border villages returning after grazing from area beyond the border.

(iii)

["Contagious disease" shall also include Haemorrhagic Septicaemia, black quarter or anthrax trypanosomiasis and foot and mouth diseases]

[Substituted by M.P. Rajpatra Part IV (Ga), dated 14-9-1984.]

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(iv)

"Form" means a Form appended to these rules.

3.

Period of immunity.

- When any cattle is proved to have been vaccinated against contagious disease by the Goat-Virus-alone method, the period of eighteen months shall, for the purposes of clause (a) of sub-section (1) of Section (4) of the Act, be extended to three years.

4.

Manner of marking the cattle.

- The marking of cattle for the purpose of clause (b) of sub-section (1) of Section 4 of the Act shall be done by branding the letter 'O' followed by the last digit of the calendar year in which the marking is done after it by hot iron/chemical ink on the near-hindquarter.

5.

Period of detention of cattle at a Quarantine Station.

- The period of detention of cattle under sub-section (2) of Section 4 of the Act shall not exceed 12 hours.

6.

Fee for vaccination and marking.

- The fee to be paid under sub-section (1) of Section 6 of the Act shall be [rupees two]

[Substituted by M.P. Rajpatra, (Extra Ordinary), dated 12-5-1993.]

per head of cattle.

7.

Form of proclamation.

- The Form of proclamation to be issued under sub-section (3) of Section 6 of the Act shall be in Form A. A copy of the proclamation shall be transmitted by registered post to the owner of the cattle if his address be known. The period between the date of proclamation and the date fixed for auction shall not be less than seven days.

8.

Form of permit.

- The Form of permit to be granted under Section 7 of the Act shall be in Form B.

9.

Officers authorised to check permits.

- The persons in charge of the cattle shall produce the permit granted under Section 7 of the Act whenever required to do so by any of the following officers :

Collector, Sub-Divisional Officer, Tahsildar, District Superintendent of Police, Deputy Superintendent of Police, Circle Inspector of Police, Extra-Assistant Conservator of Forests, Forest Ranger, Director of Veterinary Services, Deputy Director of Veterinary Services, Assistant Director of Veterinary Services, Veterinary Inspector, District Livestock Officer, Veterinary Assistant Surgeon, Veterinary Supervisor, Sub-Veterinary Assistant Surgeon and Stock Supervisor.

10.

Declaration of compulsory rinderpest inoculation areas.

- The notification under sub-section (1) of Section 9-A of the Act shall be in English and Hindi and copies thereof shall be pasted at the office of the Collector, at the Tahsil, Gram Panchayat and Block Development Offices and at conspicuous places in the village or villages of the compulsory rinderpest inoculation area. The substance of the notification shall also be made widely known by beat of drum in such area.

11.

Manner of marking of compulsorily inoculated cattle.

(1)

Every cattle which has been inoculated against rinderpest shall be marked on the neck or other suitable part of its body by means of chemical ink or by using any other method as may be directed by the Central Rinderpest Control Committee of Indian Council of Agricultural Research, New Delhi.

(2)

The specification of marking shall be of the pattern approved by the Central Rinderpest Control Committee of Indian Council of Agricultural Research, New Delhi.

12.

Charges for inoculation and marking of cattle

- No charge shall be levied for the inoculation against rinderpest and marking of such cattle, but actual expenses, if any, incurred over securing assistance for inoculating or marking cattle or over the delivery of order issued or such matters as have been necessitated by insufficiency or entire lack of assistance or cooperation on the part of an owner or person in charge of cattle, shall be recovered in cash by the Collector of the area from the person on account in whom they have been incurred and to whom and also to the Collector, a bill giving full details shall be sent by the Veterinary Officer.

13.

Report of contagious diseases.

- A Veterinary Officer visiting anyplace in compliance with sub-section (3) of Section 9-B of the Act shall, on arrival at such place,-

(a)

satisfy himself as to the presence and nature of the contagious disease;

(b)

estimate as accurately as possible, the number of cattle ailing from or died of the contagious disease;

(c)

take such action in respect of the sick, dead and healthy animals as may, in his opinion, be consistent with the provisions of the Act, and shall report the action taken to his immediate superior gazetted officer such as the District Live-Stock Officer or Assistant Director of Veterinary Services, or Deputy Director of Veterinary Services, as the case may be; and (d) report in Form C to the following officers having jurisdiction over the area :

(i)

Collector (through the Tahsildar).

(ii)

District Live-Stock Officer, Assistant Director of Veterinary Services or Deputy Director of Veterinary Services.

(iii)

Sub-Inspector of Police or the Station House Officer.

(iv)

Director of Veterinary Services (direct).

(v)

Rinderpest Officer (direct).

14.

Declaration of infected areas.

- A notification to be issued under sub-section (1) of Section 9-C of the Act, shall be published by beat of drum in the infected area and shall be effective from the date of its publication by beat of drum.

15.

Restrictions in infected areas.

(1)

On the issue of a notification under Section 9-C of the Act, the following provisions shall apply in respect of cattle in such area, namely :

(a)

Save in accordance with the conditions of a permit in writing in Form D, granted in this behalf by the Veterinary Officer concerned, no person shall remove or cause to be removed out of or into the infected area any cattle dead or alive, any product of a sick cattle or any part of a dead cattle, or any fodder, bedding, harness or other things used in connection with the sick or dead cattle.

(b)

Nothing in clause (a) shall prevent the carriage of any cattle or thing through an infected area by any mechanically propelled vehicle or railways provided that if such cattle or thing, at any stage of its carriage by such vehicle or railway through an infected area, is unloaded therein, it shall not be removed therefrom save in accordance with the provisions of clause (a).

(c)

In all cases wherein preventive inoculation is possible, the Veterinary Officer shall inoculate, free of charge, such kind and classes of cattle and in such manner as mentioned in Form E and approved by The Civil Veterinary Department, Madhya Pradesh, in respect of such contagious disease, and the owner of every such cattle shall render every facility and assistance to the Veterinary Officer in carrying out such inoculation.

(d)

For the purpose of inoculating any cattle, the Veterinary Officer may, if necessary, by order issued in Form F and duly served upon the owner or person in charge of the cattle, require him to produce it for inoculation at the time and place specified in such notice.

(e)

For the purpose of identification of the inoculated cattle, the Veterinary Officer shall cause the cattle to be branded, free of charge, on the near hindquarter by letters O/S/N/Q/ (Rinderpest/ Haemorrhagic Septicaemia/Anthrax/ Blackquarter) followed by the list digit of the calendar year in which the marking is done.

(f)

Cattle, if any, required by the Veterinary Officer by an order issued in Form F and duly served to be kept confined to specified premises and up to the time stipulated in the order, shall be so confined by the owner or person in charge of the cattle.

(g)

A carcass or its remains and appurtenances shall be either buried not less than six feet from the ground level or fully burnt by the owner or person in charge, provided that the Veterinary Officer may, at his own discretion, conduct a post-mortem examination of the carcass and remove therefrom free of cost such material as he may require for investigation, provided further that a carcass or its remains and appurtenances so buried shall not be exhumed.

(h)

No person shall bring or attempt to bring into any market, fair, exhibition or other concentration of cattle, or sell or attempt to sell or transfer in any manner to another person any cattle which he knows or has reason to believe to be infective.

(2)

No charge shall be levied for the inoculation and marking of cattle but actual expenses, if any, incurred over securing assistance for inoculation or marking cattle or over the delivery or order issued, or over cremation or burial of carcasses and their appurtenances or over such matters as have been necessitated by insufficiency or entire lack of assistance or co-operation on the part of an owner or person in charge of cattle shall be recovered in cash or kind by the Collector of the area from the person on account of whom they have been incurred and to whom and also to the Collector, a bill giving full details shall be sent by the Veterinary Officer.

16.

Power of Veterinary Officer to enter premises.

- Under Section 10-A of the Act, the Veterinary Officer shall observe the following procedure, namely :

(a)

No entry or inspection shall be made between sunset and the following sunrise.

(b)

At least eight hours' notice of such entry shall be issued by order in Form G and duly served on the owner or occupant of the premises.

17.

Manner of serving any order or notice.

- Any order or notice required to be served by these rules shall be served by tendering a copy of such order or notice to the addressee or to any adult male member Or servant of the addressee's household, or, in the event of no such person being found, by affixing on some conspicuous part of the usual place of residence of the addressee.

18.

Repeal and savings.

- The Central Provinces Cattle Diseases Rules, 1936, and all other rules corresponding thereto in force in any region of the State of Madhya Pradesh immediately before the commencement of these rules, are hereby repealed :

Provided that anything done or any action taken under any of the rules so repealed shall, unless such thing or action, is inconsistent with any of the provisions of these rules, be deemed to have been done or taken under the corresponding provisions of these rules.

Form A

[See Rule 7]

Proclamation under sub-section (3) of Section 6 of the Madhya Pradesh Cattle Diseases Act, 1934.

Whereas..... heads of cattle belonging to.....were imported and [detained at]

[In case of detention of cattle under sub-section (2) of Section 8 of the Act.]

..... in the quarantine station at.....

and whereas..... being the person in charge of such cattle has not paid Rs..... on account of the fee payable by him under sub-section (1) of Section 6 of the Act and whereas the cattle described below have consequently been seized by the Veterinary Officer of the said station under sub-section (2) of Section 6 of the Act :

Proclamation is hereby made that, unless the dues and charges mentioned in clauses (a) and (b) of sub-section (3) of Section 6 of the Act are paid before the date herein fixed for the sale, the said cattle shall be sold by public auction at..... noon on the..... day of20 under sub-section (3) of Section 6 of the Act by the.....

Number and description of cattle.....

.....

Collector

Date.....

Form B

[See Rule 8]

Permit under Section 7 of the Madhya Pradesh Cattle Diseases Act, 1934

No.....

Dated.....

Name..... son of.....resident of.....is permitted to take....heads of cattle as described below from..... to.....via.....

He-buffaloes.....

Bulls.....

She-buffaloes.....

Bullocks.....

Calves.....

Cows.....

Calves.....

Quarantine Station/Place*.....

(Counterfoil)

Veterinary Officer Incharge of the Station

(Designation and Headquarter)

*In case of release of cattle under Section 8 (2) of the Act.

Form C

[See clause (d) of Rule 13]

No.....

Dated.....the.....20..

Whereas I am satisfied by personal knowledge that the cattle in the following area are infected or are likely to be infected with..... I, therefore, request that immediate steps be taken to declare the said area, under Section 9-B of the Madhya Pradesh Cattle Diseases Act, 1934 (XVI of 1934):

District.....

Tahsil.....

Village(s).....

Veterinary Officer

(Designation and Headquarters)

To

(a)

The Collector (through the Tahsildar)

(b)

The District Live-Stock Officer/Assistant Director of Veterinary Services/Deputy Director of Veterinary Services, in charge of District or Division.

(c)

Sub-Inspector of Police or Station House Officer.

(d)

Director of Veterinary Services, Madhya Pradesh (direct).

(e)

Rinderpest Officer, Madhya Pradesh (direct).

Form D

[See clause (a) of sub-rule (1) of Rule 15]

No.....

Dated..... the.....20..

I,Veterinary Officer, having satisfied myself that-

(a)

Cattle

(b)

Carcass(es), and

(c)

Appurtenances, parts or products of cattle or carcass(es) described below, and belonging to/in charge of.....is are (a) inoculate against, (b) and (c) not likely to spread do hereby authoriseto remove the above-mentioned property from or into the infected area involved in Government Notification No.....dated.....subject to the conditions that this letter of authority-

(i)

is valid from.....to.....

(ii)

is not transferable,

(iii)

must accompany the property in transit, and

(iv)

must be shown, on demand, to a Veterinary Officer or a policeman in uniform.

Veterinary Officer

(Designation and Headquarters)

Form E

[See clause (c) of sub-rule (1) of Rule 15]

Diseases

Vaccination alone or serum simultaneous

inoculation healthy cattle

Serum inoculation ailing cattle

(1)

(2)

(3)

Rinderpest Haemorrhagic Septicaemia Anthrax

Cattle over 2 months Do Do

Ailing cases alone of Rinderpest, Haemorrhagic, Septicaemia,
Anthrax and Blackquarter.

Form F

[See clause (f) of sub-rule (1) of Rule 15]

In pursuance of Notification No..... dated..... declaring the..... Village of..... Tahsil..... District.....
as infected area, I (enter name and designation of the Veterinary Officer)..... do hereby require you
(name)..... under Rule 15 (1) (d) of the rules framed under the Madhya Pradesh Cattle Diseases Act, 1934 (XVI of
1934), to detain your undermentioned cattle within the following area up to the specific date and time and to produce
them for inoculation and marking at..... On.....

Number and particulars of cattle to be detained, inoculated and marked..... Area of detention..... Date and time
when period of detention ends.

Veterinary Officer

(Designation and Headquarters)

Form G

[See clause (b) of Rule 16]

No.....

Dated..... the 20.

To,

.....

.....

Whereas there is reason to believe that a cattle infected with contagious disease is concealed in the undermentioned
land/building/yard/vehicle, etc., I, therefore, under Rule 16 (b) of the rules, framed under the Madhya Pradesh Cattle
Diseases Act, 1934 (XVI of 1934), order you as owner or occupier of the said land/building/ yard/vehicle, etc., to render
the said land/building/yard/vehicle, etc., accessible for inspection. Failure to comply with this order shall render you
liable to pay a fine which may extend to Rs. 500 or in default of payment of fine with simple imprisonment for a period
which may extend to three months under Section 11 of the said Act

Name of land/building/yard/vehicle etc..... Tahsil..... District.....

Veterinary Officer

(Designation and Headquarters)

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